

26STCP03009 26STCP03009

County: los-angeles

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Case Number: 26STCP03009 Hearing Date: August 27, 2026 Dept: 833

Lilia Leon, Case No. 26STCP03009

Hearing:

August 27, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Eduardo Sarmiento and Dean Logan Judge:

Joseph Lipner

and

Real-Party-in

Interest Ivan Altamirano

[Tentative] Order Granting

Petition for Writ of Mandate

INTRODUCTION

Petitioner Lilia Leon ("Petitioner") seeks a writ of mandate compelling Respondents Eduardo Sarmiento ("Sarmiento") and Dean Logan ("Logan") (collectively, "Respondents") to remove Real-Party-in-Interest Ivan Altamirano ("Altamirano") from the list of qualified candidates appearing on the November 3, 2026 General Municipal Election ballot for the office of Commerce City Councilmember.

The Court GRANTS the petition for writ of mandate. Altamirano is ineligible to seek election to the Commerce City Council because he has already served three full terms within the meaning of Commerce Municipal Code section 2.08.160. The Court directs Sarmiento not to certify Ivan Altamirano as a candidate for office of Councilmember for the November 3, 2026 General Municipal Election and orders Logan not to print, distribute, tabulate, or certify ballots listing Ivan Altamirano as a candidate for the Commerce City Council. T

The Court will sign Petitioner's proposed judgment today, as a result of the timeline explained by Logan for preparing the ballot for the November elections.

BACKGROUND

The following facts are taken from the petition for writ of mandate and Petitioner's request for judicial notice ("RJN").

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In March 2011, the voters of the City of Commerce approved Measure A, an initiative establishing term limits for members of the City Council. As approved by the voters and now codified in section 2.08.160 of the Commerce Municipal Code ("Section 2.08.160"), the measure provides that "[a] person is ineligible to hold office as a member of the city council if that person has served in the office for three full terms." (Petition, ¶ 2, RJN, Exh. E; see Exh A.) This measure was designed to apply prospectively. (Id. Ex. E.) The Court's ruling quotes the operative language of Section 2.08.160 below.

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More than a decade later, in November 2022, the voters approved Measure SL, a council-referred measure that retained the City's three-term limit while amending the definition of a "full term" to account for the City's transition to statewide general elections. Measure SL did not repeal, relax, or extend the City's three-term limit. Rather, it clarified that a full term may exceed four years when authorized by state law because of the City's transition to a new election schedule. (Petition, ¶ 3, Exhs. I-J.)

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Altamirano

has served three full elected terms on the City Council. He was elected to full terms in March 2013, June 2017, and June 2022, and is presently serving the third of those terms. (Petition, ¶ 4; RJN, Exhs. B-D.)

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Sarmiento,

the chief election official of City of Commerce, is permitting Altamirano to appear on the ballot as a candidate for a fourth consecutive elected term on the City Council, even though he has already served the maximum number of full terms permitted by Commerce Municipal Code section 2.08.160. (Petition, ¶ 6; RJN, Exh. M.)

LEGAL STANDARD

A.

General Legal Standard on Petitions for
Writ of Mandate

The petition is brought pursuant to CCP section 1085. There are two essential requirements to the issuance of an ordinary writ of mandate under Code of Civil Procedure section 1085: (1) a clear, present, and ministerial duty on the part of the respondent, and (2) a clear, present, and beneficial right on the part of the petitioner to the performance of that duty. (California Ass'n for Health Services at Home v. Department of Health Services (2007) 148 Cal.App.4th 696, 704.) "An action in ordinary mandamus is proper where ... the claim is that an agency has failed to act as required by law." (Id. at 705.)

"Generally, mandamus is available to compel a public agency's performance or to correct an agency's abuse of discretion when the action being compelled or corrected is ministerial." (AIDS Healthcare Foundation v. Los Angeles County Dept. of Public Health (2011) 197 Cal.App.4th 693, 700.) "While, of course, it is the general rule that mandamus will not lie to control the discretion of a court or officer, meaning by that that it will not lie to force the exercise of discretion in a particular manner ... [it] will lie to correct abuses of discretion, and will lie to force a particular action by the inferior tribunal

or officer, when the law clearly establishes the petitioner's right to such action.” (Flores v. Dept. of Corrections & Rehabilitation (2014) 224 Cal.App.4th 199, 208.)

An agency is presumed to have regularly performed its official duties. (Evid. Code § 664.) Petitioner “bears the burden of proof in a mandate proceeding brought under Code of Civil Procedure section 1085.” (California Correctional Peace Officers Assn. v. State Personnel Bd. (1995) 10 Cal.4th 1133, 1154.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.’¿ Interpretation of a statute or regulation is a question of law subject to independent review.” (Christensen v. Lightbourne (2017) 15 Cal.App.5th 1239, 1251.)

B.
California Elections Code Petitions for
Writs of Mandate

California
Elections Code Section 13314, subd. (a)(1) provides that “[a]n elector may seek a writ of mandate alleging that an error or omission has occurred or is about to occur, in the placing of a name on, or in the printing of, a ballot, county voter information guide, state voter information guide, or other official matter, or that any neglect of duty has occurred, or is about to occur.”

A
preemptory writ of mandate requires proof of the following: (1) that the error, omission, or neglect is in violation of this code or the Constitution; and (2) that issuance of the writ will not substantially interfere with the conduct of the election. (Cal. Elec. Code § 13314, subd. (a)(2).)

C.
Commerce Municipal Code

Commerce Municipal Code
Section 2.08.160 provides:

(a)
A person is ineligible to hold office as a

member of the city council if that person has served in the office for three full terms. A full term may exceed a four-year period if authorized by state law.

(b)

For the purpose of term limitation, a person who was appointed or elected to a vacant office for an unexpired term of more than one-half the original term shall be deemed to have served a full term.

(c)

For the purpose of term limitation, all offices of member of the city council elected at large shall be considered as one office.

Except

for the underlined text, the terms of this ordinance have been in effect since 2011.

(Compare Petitioner's RJN Exh. E with Exh. J.) The underlined sentence was added in 2022 as part of Measure SL. (Petitioner's RJN Exh. J.) Measure SL also eliminated a prior provision that "under no circumstances may a person hold office as Member of the City Council for longer than 12 (twelve) years total." (Petitioner's RJN Exh. E, J.)

DISCUSSION

A. Judicial Notice

The Court grants both parties' requests for judicial notice.

B. Petitioner has

standing to bring this petition

Election Code section 13314, subdivision (a)

allows any "elector" to bring an election-related petition of mandate.

California Elections Code Section 321 defines "elector" as "a person who is a United States citizen 18 years of age or older, and...is a resident of an election precinct in this state on or before the day of an election."

Petitioner is a voter in the City of Commerce. (Petition,

¶ 11.)

Thus, Petitioner has the statutory right to seek a writ of mandate to allege that the City has erred by placing Mr. Altamirano's name on the ballot as a qualified candidate for the office of City Councilmember.

C. Petitioner has satisfied the requirements of Code of Civil Procedure Section 1085

Petitioner

has a direct and beneficial interest in the outcome of this suit, as a voter with an interest in fair enforcement of city's laws. (Petition, ¶¶ 11, 54.) Petitioner also can pursue this action under the doctrine of public interest standing. Public interest standing is an "exception to the requirement of beneficial interest for a writ of mandate," which "promotes the policy of guaranteeing citizens the opportunity to ensure that no governmental body impairs or defeats the purpose of legislation establishing a public right." (Save the Plastic Bag Coalition v. City of Manhattan Beach (2011) 52 Cal.4th 155, 166.) Courts have previously conferred public interest standing on an association organized for the purpose of protecting a ballot measure, noting that a petitioner who has "alleged that the city violated its own municipal law," "particularly one enacted by voter initiative" was seeking to enforce "a 'sharp' public duty." (Citizens for Amending Proposition L v. City of Pomona (2018) 28 Cal.App.5th 1159, 1177.) "When the duty is sharp and the public need weigh[ty], the courts will grant a mandamus at the behest of an applicant who shows no greater personal interest than that of a citizen who wants the law enforced." (McDonald v. Stockton Met. Transit Dlt. (1973) 36 Cal.App.3d 436, 440.) Petitioner has invoked the need to enforce the dictates of a voter initiative and therefore has standing to bring this petition.

Petitioner

has identified the legal provision that lists a ministerial duty – Commerce Municipal Code Section 2.08.160. Sarmiento suggests that mandate cannot issue because that section of the code requires interpretation and the exercise of judgment to define what a full term is. The Court disagrees that the following part of Section 2.08.160 is subject to more than one interpretation:

A person is ineligible to hold office as a member of the city council if that person has served in the

office for three full terms. A full term may exceed a four-year period if authorized by state law.

The first sentence is abundantly clear. Altamirano has served three full terms and cannot seek a fourth term. The second sentence is irrelevant because Altamirano is not suggesting that state law has any effect on the length of his term, or that state law allows him to run again in 2026.

The fact that Petitioner cited other sources is not a sign that there is no ministerial duty. The use of other sources was helpful to emphasize certain points in Petitioner's argument, but the ministerial duty comes from the statute, not the legislative history.

Finally, Petitioner appears to have independent grounds to bring a petition for writ of mandate under California Elections Code section 13314. The text of that statute allows a voter to bring a petition for writ of mandate dealing with the placing of a name on a ballot.

D. Merits

The text of Commerce Municipal Code Section 2.08.160 states that “[a] person is ineligible to hold office as a member of the city council if that person has served in the office for three full terms.” Altamirano was elected to full terms in March 2013, June 2017, and June 2022, and is presently serving the third of those terms. (Petition, ¶ 4; RJN, Exhs. B-D.) As recently as 2022, a staff report described how as a result of Measure SL, Councilmember Altamirano could serve until 2026 before term limits kick in. (RJN. Exh. L at pp. 2-3 [“The proposed amendment would allow for the councilmember, now recently re-elected in 2022, to serve until the end of the full terms until 2026.”])

The terms of Section 2.08.160 and the facts to which it applies are exceptionally clear. Councilmember Altamirano is term-limited and cannot be on the 2026 ballot.

Altamirano's contrary argument relies on an assertion that Measure SL (passed in 2022) has the effect of resetting the clock such that none of his service prior to 2022 counts towards term limits. He bases this argument on California Elections Code Section 36502, subd. (b), which states: “Any proposal to limit the number of terms a member of the city

council may serve on the city council, or the number of terms an elected mayor

may serve, shall apply prospectively only.” (Elections Code § 36502, subd. (b).) Altamirano’s argument is unpersuasive and does not bear

scrutiny at any level.

First, Altamirano’s argument cannot be squared

with the text of Section 2.08.160, even as amended by Measure SL. As can be seen by a review of the text of

this municipal code section, the following operative language has been in the municipal

code section unchanged since 2011: “A person is ineligible to

hold office as a member of the city council if that person has served in the

office for three full terms.” Nothing in the later Measure SL changed that

provision, and it is that provision that prevents Altamirano from running

again. All of the Altamirano’s arguments that Section 2.08.160 can only operate

“prospectively” do not help

him. Putting aside the more detailed analysis of what prospective application

means, all of Altamirano’s three terms occurred after the term limits were

imposed 2011 by this still-operative provision.

Second, assuming for the sake of argument only

that Measure SL should be considered to have changed the term limit law in any

relevant way (which it did not), that fact would still not help Altamirano in

relying on the rule about prospective application. The

Court of Appeal has explained that counting terms served before a term-limit

law’s enactment is a permissible prospective application of a term limits law –

not a retroactive one. (*San Bernardino County Board of Supervisors v. Monell*

(2023) 91 Cal.App.5th 1248, 1287-1289 [case involving a new one-term limit

for county supervisors that took effect days after the new supervisors had

assumed office, which would prohibit them from running for a second term].) Monell

explained that the “event necessary to trigger application of the statute”

was the election after the term limit went into effect. (*Id.* at p. 1288-1289.)

While Monell interpreted Government Code Section 25000, subd. (b), that

section is substantially similar to the statute at issue in this case –

Government Code Section 36502, subd. (b). Both statutes include the

“prospectively only” language, and thus, should be interpreted similarly. Accordingly, even assuming that Measure SL were

a new term limit provision (which it was not), it would apply here based on terms

of office that occurred partially before the ordinance was enacted.

Third, Altamirano’s arguments about the effect of

Measure SL conflict not only with the terms of the ordinance but also with express guidance

that voters considered in passing Measure SL. Measure SL specifically said, “all other

provisions [of Section 2.08.160 of the Municipal Code] would remain in effect, including the provision of limiting a council member to serve in office no more than three (3) full terms.” (RJN. Exh. J.) The City Attorney’s impartial analysis informed voters that “[t]he amended term limits ordinance would also retain the prohibition against any person serving more than three full terms.” (Palmer Supplemental Decl., Exh. A, p. 3 (emphasis added).) The Argument in Favor of Measure SL likewise told voters that the City’s 2011 term limits provided that “a person ‘is ineligible to hold office as member of the city council if that person has served in the office for three full terms...” (Palmer Supplemental Decl., Exh. A, p. 3.) The documents that voters received about Measure SL are not ambiguous. The documents, like the text itself, indicate that Altamirano can serve three full terms, and at that point, must step aside.

Measure

SL was enacted for one limited purpose, stated in ballot question itself:

“Shall the City of Commerce modify existing term limits on the office of City Councilperson so that term limits allow for the extension of Council terms due to the change of election dates mandated by state law?” (Palmer Supplemental Decl., Exh. A, p. 2.) To put it another way, Measure SL was a

proposal to change what happens in one narrow situation: where the change in election dates extended a term such that a council member’s three terms would extend beyond twelve years. If an incumbent councilmember’s election history does not fit into the narrow situation Measure SL addressed, that incumbent cannot take advantage of any prospective application of Measure SL. Altamirano’s situation is not addressed by Measure SL in any way. The minor and technical change in this measure did not change the general term limit law or erase Altamirano’s three full terms of service.

Sarmiento contends that this Court must follow *Woo v. Superior Court* (2000) 83 Cal.App.4th 967. *Woo* is inapposite. In *Woo*, the petitioner served as an elected member of the City Council from July 1985 to June 1993. (*Id.*, at p. 969.) In July 1993, Los Angeles voters agreed to Charter Amendment 2, which limited elected city officials to only two terms in office, counting only terms commenced on or after July 1, 1993. (*Id.*, at p. 970.) The voter information pamphlet made clear that all current office holders could be eligible for re-election for up to two more terms. (*Ibid.*)

In 1999, Los Angeles voters passed a new city charter, which included similar text as Charter Amendment 2, but excluded any reference

to incumbent office holders being eligible for re-election for up to two more terms. (Id., at p. 971.) In 2001, the petitioner sought election for a third term, but the city clerk advised him that he was ineligible to seek reelection based on a provision of the new city charter limiting elected city officials to only two terms in office. (Id., at p. 969.) The petitioner argued that the drafters of the charter intended to preserve the requirement that only terms starting after July 1, 1993 would count towards term limits. (Id., at p. 972.)

The Court of Appeal explained that literally interpreted, the new city charter would mean that no person may serve more than two terms as member of the city council. (Id., at p. 975.) If the literal meaning were applied, seven of the fifteen council districts immediately would become unrepresented (since council members had previously served two terms before 1993), requiring a special election or appointment; the city council would lack a quorum and would be completely disabled. (Id., at p. 976.) The Court of Appeal reasoned that voters did not intend such an absurd and unreasonable consequence. (Ibid.)

The Court of Appeal also noted that ballot pamphlet accompanying the new city charter stated that the existing term limits would be “retain[ed]” which indicated to voters that there would be no change. (Id., at p. 977.) Based on that, the Court of Appeal stated that it was reasonable voters believed there would be no change from Charter Amendment 2. (Ibid.)

The facts of Woo are very different than the facts of our case. The current case provides no facts similar to the complex situation in Woo where a previous ordinance specifically exempted terms that began before July 1993 but then a subsequent ordinance neglected to mention this, leading to unexpected consequences if interpreted literally. Moreover, here no party has presented any evidence to indicate that siding with Petitioner would lead to an absurd and unreasonable result – such as a City Council that lacks a quorum and is completely disabled. Meanwhile, the text of Measure SL is clear that “all other provisions [of Section 2.08.160 of the Municipal Code] would remain in effect, including the provision of limiting a council member to serve in office no more than three (3) full terms.” (RJN. Exh. J.). Based on this sentence, it is reasonable that when voters voted on Measure SL, they assumed they were keeping the three-term limit and not giving

incumbents the flexibility to serve additional terms. The law must be applied just as it is written.

CONCLUSION

The Court GRANTS the petition for writ of mandate. Pursuant to Local Rule 3.231, subd. (n), Petitioner shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: August 27,
2026

Joseph
Lipner

Superior
Court Judge